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नव मंगलूर पत्तन प्राधिकरण
NEW MANGALORE PORT AUTHORITY
(Fully Solar Powered)
भारत सरकार (पत्तन, पोत परिवहन और जलमार्ग मंत्रालय)
Govt of India (Ministry of Ports, Shipping and Waterways)
ಪಣಂಬೂರು पणम्बूर Panambur / ಮಂಗಳೂರು मंगलूर Mangalore - 575010

Azadi Ka Amrit Mahotsav

SAGARMALA
PORT-LED PROSPERITY

No. NMPA/Traffic/Com/Green Policy/01 **Date: 26.08.2025**

TRADE NOTICE

Sub: Introduction of "NMPA Harit Cargo Concession Policy–2025"–reg

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To accelerate India's clean energy transition and position New Mangalore Port Authority (NMPA) as a hub for sustainable trade, the Board of NMPA has approved the adoption of the **"NMPA Harit Cargo Concession Policy–2025",** (Annexure-I) along with its associated **SOP** (Annexure-II), effective from 1st July 2025 for a period of five years, subject to review.

Under this policy framework:

i. A **40%** base concession on wharfage charges shall be extended to export of all eligible green cargo.

ii. A **75%** telescopic concession shall apply where annual volumes equal and exceed 100,000 MT (exporter-wise, from date of first shipment).

Ex. Exporter has handled 1,20,000 MT within 12 months from the date of 1st shipment.

Wharfage Discount applicable:

(a) 1 to 99,999 MT – 40% discount.

(b) 1,00,000 to 1,20,000 MT- 75% discount on 20001 MT of cargo exported beyond 99,999 MT.

iii. Priority berthing will be accorded to green cargo vessels at Berths B6/9, subject to operational feasibility and applicable charges under the SOR.

iv. Eligible cargo includes certified alternate fuels and derivatives such as biodiesel, bio-ethanol, bio-CNG, green hydrogen, green ammonia, sustainable aviation fuel (SAF), and green methanol.

v. Exporters are required to comply with the provisions of the prescribed policy and SOP enclosed.

vi. This structured, volume-based incentive scheme is aimed at promoting the export of green cargo and enabling NMPA to emerge as a premier green export logistics hub along India's western coastline. Stakeholders are requested to take note of the above and avail the benefits under the NMPA Harit Cargo Concession Policy–2025.

25/8/25.

Traffic Manager i/c

To,

All Port Users

Copy to:

i. The President, Mangalore Steamer Agents Association.

ii. The President, Association of NMPA Stevedores.

iii. The President, Mangalore Customs House Agents Association.

iv. FA& CAO/Dy. Conservator /Secretary, NMPA for information.

v. Sr. DTM/DTM(C)/ DTM(O) for information.

vi. Sr. DD(EDP) to upload the Trade Notice in NMPA's website.

vii. PS to Chairman /PS to Dy. Chairman for kind information.

Annexure I

NMPA Harit Cargo Concession Policy-2025

1. **Objective:** To promote and facilitate the export of **green energy cargo** through NMPA by offering targeted incentives. This policy aims to attract exports of alternate fuels and their derivatives (such as biofuels and other sustainable fuels), in alignment with India's green maritime initiatives and NMPA's strategic vision of cargo diversification and environmental stewardship.

2. **Defined Scope and Eligibility Criteria**

   This policy defines which cargos and transactions are eligible for the green concessions, and provides a framework to expand eligibility to new fuels in the future. The policy targets green energy cargoes – including alternate fuels (also known as biofuels, renewable fuels or sustainable fuels) and their derivatives.

   Eligible green energy commodities

   NMPA will publish and maintain an official list of eligible cargoes, which initially includes:

   i. Biodiesel (BIS IS 15607 specifications or equivalent)

   ii. Bio-ethanol (BIS IS 15464 or IS 16156 or equivalent)

   iii. Bio-CNG / Compressed Bio-Gas (CBG) (SATAT guidelines or equivalent)

   iv. Green hydrogen (MNRE / BIS standard or equivalent)

   v. Green ammonia (MNRE / BIS standard or equivalent)

   vi. Sustainable Aviation Fuel (SAF) (IS 17081 or equivalent)

   vii. Green methanol (MNRE / BIS standard or equivalent)

   Only specified green energy commodities qualify for these incentives, and they must be certified as green by credible standards – for e.g., compliance with BIS standards, or other approved certifications. This safeguard prevents "greenwashing" – no exporter can claim a standard fossil product as "green" simply to get a discount. Exporters will need to furnish proof that the cargo indeed qualifies for the incentive. As new green commodities emerge, they can be added to the eligibility list if they satisfy the certification requirements, keeping NMPA's policy up-to-date with technological progress.

   Certification Requirements

   i. Exporters must furnish proof of compliance with the relevant Indian standards (BIS certification or equivalent).

   ii. A valid Certificate of Origin / Sustainability Certificate issued by an approved body (e.g. MNRE-recognized agency, BIS, or government-notified certification body) must be submitted for each consignment.

   iii. NMPA reserves the right to require additional documentation or verification if there is reasonable doubt about the cargo's eligibility.

Exclusions

Conventional fossil-fuel commodities (e.g. mineral crude oil, petroleum diesel, coal, etc.) are explicitly excluded from this scheme – they continue to pay standard tariffs. A shipment lacking proper certification or not qualifying as per government rules shall not receive the discount.

Future additions

New green energy commodities may be added to the eligible list upon:

i. a formal notification or classification by Government of India (or MoPSW or another competent authority) recognizing the fuel as a biofuel/green fuel; **and**

ii. demonstration that NMPA has or can readily establish the infrastructure and safety protocols to handle that fuel; **and**

iii. approval by NMPA's competent authority following a review of the infrastructure, safety, and commercial viability for that fuel's handling.

3. **Wharfage Concession:** NMPA shall offer a concession on wharfage (cargo handling charges) for the export of eligible green energy cargoes, structured as follows:

i. **Base Rebate:** A **40% reduction** in the applicable wharfage rate (as per the prevailing Scale of Rates) shall be granted on all eligible green energy cargo exports. This means exporters of qualifying cargo will pay only 60% of the normal wharfage tariff. (This applies to both foreign and coastal rates as relevant.)

ii. **Volume-Linked Incentive:** If the **total annual volume** of eligible green energy cargo handled at NMPA exceeds **100,000 metric tonnes** in a financial year, a higher rebate of **75%** on wharfage shall be applied **for the volume => 100,000 MT** handled in that year. In other words, upon reaching the 100,000 MT throughput threshold in a year, all eligible cargo shipments in that year will enjoy a 75 % wharfage discount (instead of 40%). This tiered incentive is designed to **reward volume growth** – encouraging exporters to channel greater volumes through NMPA.

Ex. Exporter has handled 1,20,000 MT within 12 months from the date of 1st shipment. Wharfage Discount applicable:

(i) 1 to 99,999 MT – 40% discount.

(ii) 1,00,000 to 1,20,000 MT- 75% discount on 20001 MT of cargo exported beyond 99,999 MT.

iii. **Time Limit for Enhanced Incentive:** The above volume-linked wharfage concession structure will be in effect for an **initial period of five (5) years** from the commencement of this policy.

iv. The **"annual volume"** shall be considered for the period starting from the date of 1st shipment, exporter to exporter wise.

v. This is intended as a booster period to establish the trade. After five years, Board of NMPA shall review and decide upon to continue the incentive, the extent of incentive or to cease the scheme based on the outcome of the scheme.

These concessions on wharfage will be administered through the Port's billing system upon verification of cargo eligibility. Exporters must ensure all required documents are provided to claim the concession at the time of cargo documentation and wharfage payment.

4. **Berthing Policy (Priority Berthing):** In order to further support efficient handling of green energy cargo vessels, **zonal priority berthing** is introduced under this policy: Vessels carrying eligible green energy export cargo shall be accorded priority berthing at **Berth No. 6 and 9** of NMPA. **Conditions:** Priority berthing at Berth 6 is subject to port operational considerations as per NMPA Berthing Policy. NMPA reserves the right to revise or withdraw the priority berthing arrangement if it interferes with overall port efficiency (see Clause 8 on Reviews).

5. **Review and Amendments:** This policy framework includes a built-in **review mechanism** to maintain fiscal prudence and operational alignment:

   i. NMPA shall conduct an **Annual Review** of the Green Cargo Export Policy. This yearly evaluation will assess key outcomes – total volumes handled, revenue implications (revenue forgone vs. gains from increased traffic), industry response, and any operational issues encountered. The results of the review will guide whether the current incentives need to continue, be adjusted, or expanded.

   ii. NMPA also reserves the right to call for an **interim review** (extraordinary review) at any time, should there be significant changes in circumstances. Such triggers may include major shifts in government policy or introduction of central schemes relevant to green fuels, significant market changes (e.g. a sudden surge in demand or drop in production), or any situation that materially affects the assumptions of this policy.

   iii. **Right to Modify or Withdraw:** Based on the outcomes of any review (annual or interim), NMPA may **modify, suspend, or terminate** any part of this policy, in whole or in part, if it is found necessary. For instance, if the policy objectives are not being met (e.g. volumes remain very low without justifiable cause) or if external developments render the concessions redundant, the Port will take appropriate action. Any such modification or withdrawal of the policy incentives will be done with **approval of the NMPA Board/Competent Authority**. Due notice of changes will be given to stakeholders. If required under regulations, major changes will be followed by publication in the Official Gazette of the state for public information.

   iv. It is also clarified that this policy does not preclude NMPA from introducing new incentives or programs separately in future for green shipping or other related areas, as may be directed by the Ministry or Board.

6. **Effective Date and Validity:** This Green Energy Cargo Export Policy comes into effect from the date of its approval by the NMPA Board and issuance of the formal order. The policy shall remain valid until **revoked or superseded** by competent authority. All incentives described herein will apply to eligible cargoes handled after the effective date. NMPA may issue detailed **Standard Operating Procedures (SOP)** to implement this policy (covering application process, documentation, etc.), which shall be read in conjunction with the policy. Stakeholders are advised to follow all stipulated procedures to avail benefits under this scheme.

7. **Future Considerations**

Priority Berthing

The berth utilization and green cargo exports volumes shall be monitored closely. If green energy traffic grows substantially, the berthing policy could be reviewed to assess the need for priority measures or dedicated windows. Conversely, if priority at Berth No. 6 and 9 begins to cause congestion or operational challenges, the arrangement may be recalibrated to safeguard

overall port efficiency and fairness. This approach ensures the policy remains adaptive by supporting trade growth without compromising the port's core operational balance.

Updating Scale of Rates

In continuation to the previously mentioned points about notifying special rates for green energy commodities, the alternate fuels differ fundamentally from fossil fuels in origin, policy context, and strategic value. Aligning their wharfage rates to Other Chemicals or generic Gas category might imposes unintended cost structures that undermine India's clean energy export ambitions. Notifying dedicated green cargo rates signals to exporters and investors that NMPA understands the unique value of these trades. This positions NMPA competitively, just as leading ports like Rotterdam and Singapore have done by establishing specific frameworks to attract clean shipping. Dedicated rates would also provide flexibility to design appropriate tariffs that reflect policy priorities, avoid reliance on perpetual concessions by building inherent long-term sustainability of the motive of incentivizing, and demonstrate NMPA's proactive role in achieving India's green ambitions.

Exploring Carbon Credit and Market Alignment

The Port shallexplore alignment of its green cargo incentive policy with emerging national and international carbon credit and trading frameworks. As India's carbon market develops, the Port may consider offering facilitation for cargoes with verified carbon savings, partnering with accredited MRV agencies, and integrating carbon market readiness into future revisions of the policy. This will enhance NMPA's positioning as a green trade enabler and support exporters in accessing carbon finance opportunities.

End

Annexure - II

Standard Operating Procedure –"**NMPA Harit** Cargo Concession Policy-2025"

Preamble: In accordance with the Green Energy Cargo Export Policy of NMPA, the following Standard Operating Procedure (SOP) is issued to detail the process and conditions for handling eligible green energy export cargoes and availing the policy incentives. All exporters, shipping agents, and stakeholders are required to adhere to these procedures to ensure smooth operations and compliance with port and statutory regulations.

1. Application for Scheme Availment: Any exporter intending to avail the green energy export incentives shall submit a written application to NMPA (through the Traffic Department or designated single-window nodal officer) **in advance of the shipment**. This application must include: the type of green cargo to be exported, approximate quantity, the expected schedule of shipment (vessel name and ETA if available), and the details of the exporting entity. The application serves to notify the Port of an upcoming eligible shipment and initiates the concession approval process.

2. Documentation Requirements: Along with the application, the exporter must furnish the following documents for each consignment to establish eligibility under the policy:

i. **Certification of Cargo:** Proof that the cargo meets the definition of an eligible green energy commodity – e.g., a copy of relevant **BIS standard compliance certificate** or test report for the batch (such as IS 15607 certificate for biodiesel, IS 15464 for ethanol, etc.), or an official letter from a competent authority (Ministry/Department) recognizing the product as a biofuel/green fuel.

ii. **Sustainability/Origin Certificate:** A valid **Certificate of Origin or Sustainability** issued by an authorized body (for instance, a Ministry of New and Renewable Energy accredited agency, or any other government-notified certification body). This document should affirm the renewable or bio-based origin of the cargo (such as a statement that the product was produced from renewable feedstock and qualifies as "green" under applicable guidelines).

iii. **Indemnity Bond:** An indemnity bond executed on non-judicial stamp paper of value not less than Rs.100/-, indemnifying New Mangalore Port Authority from any **legal disputes, claims, or liabilities** arising out of the export of this cargo. The bond must be furnished by the exporter (or their authorized agent) and should declare, inter alia, that: (i) the cargo is legally permitted for export and free from any encumbrances, court orders, or statutory liabilities that would prevent its export, and (ii) the exporter assumes full responsibility for any accident, pollution, or third-party damage resulting from the handling of the cargo. This bond must be submitted **prior to allotment/entry of cargo and again prior to the shipment's loading**, as a reaffirmation of liability and compliance.

iv. **Regulatory Clearances:** If the export of the particular commodity requires any specific license or clearance (for example, a DGFT license, PESO clearance for hazardous goods, or NOC from any authority), copies of such documents should be attached. It is the exporter's responsibility to obtain any such permissions as required by law.

Both case for PESO clearance - requirement or non-requirement, should be clearly communicated with the relevant documents from PESO well in advance before planning the first shipment.

3. Approval and Registration: Upon receipt of the application and complete documents, NMPA will register the exporter's request under the Green Energy Cargo Export scheme. The **Traffic Manager** (or nominated official) shall verify the eligibility of the cargo against the notified list and ensure all certifications are in order. If the cargo qualifies and documentation is satisfactory, the Traffic Department will issue a **"Green Energy Cargo Export Concession Approval"** letter or email to the exporter/agent. Concurrently:

i. The Traffic Department will inform the **Marine Department** and **Port Operations** that the incoming vessel (as identified) is to be treated under the green priority scheme (for berthing priority at Berth 6 and vessel charge concessions).

ii. The **Finance Department** (Port Accounts/Billing) will also be notified so that the billing system can apply the applicable **wharfage and vessel charge rebates** for this shipment. The exporter's details and the commodity code will be flagged for the concession in the system.

iii. An internal entry will be made to track the volume under this scheme for monitoring purposes. Each approved shipment will contribute to the cumulative annual green cargo volume count.

iv. If the documents are incomplete or the cargo is ineligible, the application may be rejected or sent back for clarification. Exporters are advised to apply well in advance to allow time for verification. No concessions shall be granted without this prior approval process.

4. Berth Nomination and Priority Allocation: Vessels carrying approved green energy cargo will be **scheduled on Priority at Berth No.6** as the default berth, or 9, unless otherwise directed by the port, subject to operational feasibility.

5. Cargo Storage and Handling Arrangements: Depending on the nature of the cargo, the exporter must make suitable arrangements for its storage and transfer within the port:

i. If the cargo is liquid or gas requiring tank storage, the exporter can utilize existing **tank terminal facilities** at the port (through rental agreements with tank farm operators) or bring ISO tank containers.

ii. The exporter/handling agent shall ensure that all pipelines, hoses, pumps, and other equipment used for transfer of the cargo from storage to the vessel are certified, in good condition, and compatible with the commodity (to prevent leaks or reactions). Prior to operations, these must be tested and a safety check performed in coordination with NMPA's terminal/berth supervisor.

iii. In case of **solid renewable fuels or packed units** (if any, e.g., pellets or containers of biofuel), the cargo must be stacked only in the area designated by the Port. Stacking should be within the marked boundaries and should not impede traffic or other cargo operations. The exporter is responsible for any loss/damage to the cargo in storage; NMPA will not provide security or insurance for cargo on port premises (cargo remains at owner's risk).

iv. The **cargo handling method** (whether by pipeline, conveyor, crane, etc.) should be clearly described in the application. If specialized handling gear or safety precautions are required, the exporter in coordination with port officials must arrange the same. For example, if loading Green Ammonia, appropriate vapor return lines and monitoring devices for leaks must be in place as per safety protocols.

6. Gate Entry and Admittance of Cargo: When bringing the cargo into the port (by road tanker, pipeline, rail, or any mode):

i. The exporter or their Clearing & Forwarding (C&F) Agent must ensure that each consignment is **pre-registered in the Port's RFID/Gate system**. The registration should link the vehicle or wagon to the exporter's ID (such as IE Code for the exporter), the specific **Allotment/Approval number** given under this scheme, and details of the cargo (type and quantity). This is similar to the procedure for other export cargos, but the linkage to the Green Cargo approval will enable tracking of volumes under concession.

ii. The cargo, upon arrival, will be directed to the pre-arranged storage or direct berth transfer point. Port personnel may verify the documentation and the **seal integrity** (if applicable) of the cargo units at the gate. Any vehicle or unit not matching the prior declaration may be denied entry or cause the consignment to lose eligibility for concession (to prevent unauthorized materials being snuck in under the guise of green cargo).

iii. If rail is used (for example, in case biofuels are moved by rail tank wagons), the exporter must coordinate with Railways and Port for siding placement. The wagons should be placed at the designated siding for Berth 6 or tank farm, and unloading should commence only after port clearance.

7. Pre-Loading Requirements: Before the vessel is permitted to berth and commence loading, the following must be fulfilled by the exporter/agent:

i. **Wharfage Charge Payment:** The exporter shall pay the **wharfage charges in advance** for the quantity of cargo intended to be shipped. Non-payment of wharfage (or any other port due) can delay vessel berthing.

ii. **Customs and Regulatory Clearance:** The exporter or C&F agent must file the **Shipping Bill** for export with Customs and obtain the **Let Export Order (LEO)** from Customs authorities for the cargo. A copy of the LEO and shipping bill shall be provided to Port officials. NMPA will only permit loading to commence after verifying that Customs has cleared the cargo for export (as per standard procedure). Any other inspections (Plant Quarantine, Excise, etc., if applicable to biofuels/chemicals) should also be completed and relevant NOCs available.

iii. **Berth Readiness:** The exporter should coordinate final berth readiness – ensure the vessel has arrived within notice period, the cargo is in position (in tank or yard) ready to load, required pumps, hoses, or loaders are on standby, and all safety measures are in place (firefighting equipment on standby, personnel with safety gear, etc.). A joint inspection by Port Safety Officer and the vessel's Chief Officer may be held if needed for hazardous cargoes, to establish safe working parameters (earthing of hoses, emergency shut-off points, etc.). Only after all pre-loading checks are satisfied will the Harbour Master grant the final berthing permission.

8. Vessel Operations and Loading: Once berthed, the loading of cargo shall proceed under the supervision of NMPA and in compliance with the following:

i. **Operational Control:** The Port's cargo supervisor or terminal operator in charge at Berth 6 will coordinate the loading operations. Communication lines between the ship and shore must be established (e.g., via radio and agreed signals) before transfer of any product. The loading rate and sequence will be as per the mutually agreed plan between the exporter (or their terminal operator) and the vessel's master, keeping in mind safe loading limits.

ii. **Safety During Loading:** Throughout the operation, safety protocols must be strictly enforced. For flammable cargo (like ethanol, biodiesel, hydrogen), "No Smoking/No Naked Flame" rules apply in and around the berth; warning signs should be placed. Spill containment booms or drip trays should be deployed as appropriate (for liquid transfers). In case of any **spill, leak, or incident**, loading must be halted immediately and port control informed; emergency procedures should be activated (the port's Fire and HSE team are on standby alert whenever hazardous cargo is handled). All personnel on duty must wear appropriate PPE (flameproof overalls, safety helmet, goggles, gloves, etc.).

iii. **Environmental Measures:** The exporter/handling agent should take care to minimize any emissions or discharges. For example, venting of gas from tanks should be controlled; any residue or wash from tanks must be collected and not dumped. In line with NMPA's green port commitment, the exporter must ensure no litter, packaging, or waste is left on the jetty. After operations, the berth must be **cleaned and restored** to the satisfaction of the port. Failure to do so may attract penalties or cleanup charges to the exporter.

iv. **Time Management:** Given that priority berthing has been granted, the Port expects efficient cargo operations. The exporter should deploy adequate pumps/crew to load the vessel in a timely manner and vacate the berth as soon as loading is completed and documentation is done. Excessive delays without valid reason may result in withdrawal of priority status for future shipments.

9. Post-loading Documentation and Reporting: Within **48 hours of the vessel's sailing**, the exporter or agent must submit to NMPA:

i. A **Final Cargo Loaded Statement**, certified by the vessel's Master or a recognized surveyor, indicating the total quantity of cargo loaded (in metric tonnes). This could be in the form of the signed Bill of Lading quantity, or a draft survey report (for liquids/gases, shore tank figures can be used if agreed). This final figure will be used to reconcile against the advance wharfage paid. Any excess cargo loaded beyond what was prepaid will require additional wharfage payment (at the concessional rate); any shortfall can be adjusted/refunded by NMPA's Finance as per standard procedures.

ii. A **Cargo Balance Report** (if applicable): If any cargo remains stored at port premises (e.g., in a tank or yard) after the vessel's departure, the exporter must declare the remaining quantity and confirm arrangements to either ship it in a subsequent vessel or remove it from the port. The report should be endorsed by a surveyor if possible. This is to avoid any undetected accumulation of cargo or overstay beyond allowed free periods. The Port will monitor storage duration and may levy demurrage/ground rent as per SoR for any cargo staying beyond the stipulated free time.

iii. The **port and customs clearance documents** post-sailing, such as the Mate's Receipt, the EGM (Export General Manifest) filing confirmation, etc., should also be furnished when available, to close the loop on the shipment.

10. Billing and Settlement: NMPA will finalize all charges for cargo after the shipment:

i. The **wharfage charge** for cargo will be calculated on the actual certified loaded quantity. All financial transactions will be subject to audit, ensuring that only approved cargo quantities got the discount. The exporter should maintain transparency and cooperate with any verification.

ii. In the event an exporter fails to produce required proof of eligibility after the fact (say the certificate provided is found invalid), NMPA reserves the right to **recover the forgone revenue**. The difference between full tariff and concession tariff will become payable immediately, with applicable interest from the date of shipment, treating it as short-paid dues.

11. Compliance with Safety and Environmental Regulations: The exporter and all their contractors must strictly abide by the **Dock Workers (Safety, Health & Welfare) Regulations**, the Petroleum Rules (if applicable for hydrocarbons), and all other statutory safety guidelines during operations. Some key points include:

i. Ensuring that all workers are given appropriate safety briefing and personal protective equipment (PPE). No person shall be allowed in the operational area without safety gear.

ii. No hot work or other maintenance work that could pose ignition risk shall be carried out on the vessel or shore during cargo transfer, unless expressly permitted with a hot-work permit after thorough precautions.

iii. The exporter must provide suitable **firefighting arrangements** (like fire extinguishers, spill kits) at the site. The port's Fire Service should be notified before operations commence and may station a fire tender on standby if needed (especially for highly flammable cargoes). Cooperation with Port fire crew is mandatory.

iv. Environmental precautions: For example, if handling ammonia or methanol, proper fendering and spill containment booms should be deployed in water to catch any accidental discharge. Any hazardous waste generated (e.g., contaminated cleaning materials, spill residue) must be collected and disposed by the exporter in accordance with pollution control board norms – it cannot be left at port. The Port is committed to "zero pollution" from these operations as part of green port initiatives, thus it will closely monitor compliance. Non-adherence can lead to penalties, including potential cancellation of the permission to operate further under this scheme.

12. Responsibility and Liability: The cargo and all handling equipment brought by the exporter remain under the **custody and responsibility of the exporter** or their agents at all times until loaded on the vessel. NMPA does **not** take custody of export cargo within the port (consistent with general practice, where the Port functions as a facilitator and landlord). Therefore:

i. Any loss, theft, or damage of the cargo on shore is at the exporter's risk. The Port shall not be liable for quality deterioration or quantity shortages that are not directly caused by the Port's own staff or infrastructure. Exporters are advised to insure their cargo appropriately.

ii. The exporter shall be liable for any damage caused to Port property or facilities in the course of handling their cargo. For instance, if a pipeline or a loader belonging to the Port is damaged due to mishandling, the exporter must bear the cost of repair/restoration. Similarly, any environmental damage (oil spills, ground contamination) caused by the cargo will be cleaned by the Port at the exporter's expense if the exporter fails to do so.

iii. The **Indemnity Bond** submitted (per clause 2c) is a binding commitment – if any legal issue arises (e.g., a third party later claims the cargo was exported illegally, or any injunction on the cargo surfaces), the exporter will handle those disputes entirely and keep NMPA indemnified. In case the Port faces any claim or penalty due to the exporter's cargo (for example, pollution fines, customs issues, etc.), the exporter must indemnify and compensate NMPA accordingly.

13. Misuse, Violations and Penalties: The Green Cargo policy is a privilege extended by NMPA, and misuse of the scheme will attract strict action. The following situations and responses are noted:

i. **False Declaration:** If an exporter is found to have misrepresented a cargo as "green" to avail concessions (e.g., claiming a regular fuel as biodiesel without proper bio-content), or if the documentation provided is discovered to be **forged or invalid**, the Port will immediately revoke all concessions for that shipment. The exporter will be charged the full applicable port charges (retrospectively), along with a **penal interest** (as per SBI MCLR + 2% or applicable rate) on the differential amount. Additionally, that exporter may be **blacklisted** from the scheme – i.e., disqualified from availing any future concessions under this policy. The Port may also initiate legal action for recovery and report the matter to relevant authorities given the fraudulent conduct.

ii. **Operational Violations:** If the exporter or their agent violates safety protocols, creates hazardous conditions, or willfully disregards port regulations, NMPA can order an immediate cessation of operations. The vessel may be unberthed if safe to do so, and the incident will be reviewed by port management. Minor infractions will attract fines as per port rules (for example, penalties for oil spills, or violation of speed limits by tankers inside port, etc., as enumerated in the Port's regulations). Major or repeated violations can result in **cancellation of the exporter's permission** to operate under the green cargo scheme. In extreme cases, the Port can also bar the concerned logistics provider or agent from operating in the port for a specified period. All exporters utilizing the scheme are thus urged to maintain the highest compliance standards, as the credibility of the Port's green initiative depends on safe and responsible operations.

In all cases of dispute or interpretation of this SOP, the decision of the **Chairman, NMPA** (or the authorized officer so designated) shall be final and binding.

14. General Conditions:

i. The exporter shall comply with any **additional instructions** issued by NMPA from time to time in the interest of operational safety, security, and efficiency. This includes

directives from Harbour Master, Traffic Manager, safety officers, and CISF/security pertaining to the handling of the cargo.

ii. No construction of any permanent structures or facilities by the exporter is permitted on Port premises unless specifically authorized in writing. Any temporary arrangements (pipelines, modular tanks, etc.) must be removed if so directed by the Port after the operation. The area utilized shall be restored to its original condition.

iii. The workforce employed by the exporter or its agents must be provided necessary welfare amenities as per labor laws. They should use port facilities (like restrooms, canteens) in an orderly manner. The exporter must ensure that their personnel do not indulge in any prohibited activities on port property (like theft, harassment, or as specifically highlighted – **no open defecation**, spitting, littering, etc., as part of maintaining a clean environment). Non-compliance will invite penalties as per port norms and could lead to cancellation of entry permits for those individuals.

iv. Vehicles and equipment brought into the port for handling the green cargo must have valid documents (registration, fitness certificate, PUC if applicable) and shall be operated by trained and licensed operators only. The Port reserves the right to inspect and reject any vehicle/equipment deemed unsafe or unfit.

v. The exporter should maintain constant coordination with port officials. Any incident, delay, or irregularity should be promptly communicated. A nodal officer from the exporter's side should be identified for day-to-day liaison.

15. Policy Alignment and Changes to SOP: This SOP is to be read in conjunction with the NMPA Green Energy Cargo Export Policy. In case of any ambiguity, the provisions of the policy shall prevail. NMPA may **review and amend** this SOP as necessary based on operational feedback or changes in the policy. Any revisions will be approved by the competent authority and communicated to all stakeholders via official circulars. Users of the scheme are responsible for keeping themselves updated with the latest procedures. All actions under this SOP will be in accordance with extant laws, the Major Port Authority Act 2021, and NMPA's prevailing Scale of Rates and Bye-laws.

End of SOP